



Delaware-Muncie Metropolitan Plan Commission Meeting December 13th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=QMLdboPlads
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Target Category	delaware_county

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Municipal Meeting Report: Delaware-Muncie Plan Commission

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The presiding officer called the meeting to order, establishing that the primary business of the session was consideration of a resolution concerning utility-scale solar installations within Delaware County under Indiana code.
- **Attendance:**
 - **Members Present (9):** Mr. Borers, Mr. Curley, Mr. Dishman, Mr. Henry, Ms. Hensley, Mr. Landis, Mr. Leech, Ms. Watson-Bacher, Ms. Owen, Ms. Powell, Ms. Cy, Mr. Wisley (*Note: Exact quorum count announced as 9 members present following roll call*).
 - **Members Absent:** Not explicitly stated in the provided transcript.
 - **Presiding Officer:** Clearly identified as leading the meeting proceedings and managing public sign-up sheets.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The transcript begins immediately with the formal roll call procedure; no formal invocation or Pledge of Allegiance is recorded in this excerpt.
- **Approval of Minutes:** Not addressed in the provided transcript excerpt.

4. Substantive Business & Board Action

- **00:05:56 Item Identifier & Title:** MPC 07-23A (Jurisdiction: County Commissioners)
<U+2013> Consideration of a resolution of approval to amend the text of the Delaware County comprehensive zoning ordinance regarding large solar installations (specifically Section 8, paragraph b, concerning acreage limitations).
- **Sponsor / Presenter:** Introduced by the presiding officer, with legal procedural guidance provided by Mr. Murphy (Attorney).
- **Deliberation Summary:**
 - Mr. Murphy outlined the legal framework under Indiana code governing amendments returned to the plan commission by the legislative body (County Commissioners). He noted the commission has 45 days to either approve the amendment (causing the ordinance to stand as passed by the commissioners) or disapprove it (requiring a confirmatory vote by the commissioners).
 - The presiding officer clarified that the sole scope of deliberation for the evening was the acreage cap specifically set at a 5,000-acre limit, and not unrelated matters such as property setbacks or drainage.
- **Item-Specific Public Input:**
 - *In Favor of 5,000-Acre Limit:*
 - **Wayne Meyer 00:08:41** (4808 North Lafern Way, Muncie): Voiced support for utility-scale solar and climate action imperatives, though initially attempting to discuss setback requirements.
 - **Cheryl Swingley 00:13:31** (3908 North Vienna Woods Drive): Spoke in favor of the acreage reduction, citing Randolph County as a case study for economic benefits, tax base improvements, and revenue generated for local infrastructure.
 - **Sarah Williams 00:13:54** (504 North McKenzie Street): Supported the 5,000-acre limit while advocating for farmer property rights and reasonable setbacks.
 - **Tim Nickam 00:14:54** (Harrison Township): Noted his participation on the study committee and supported the 5,000-acre limit as a reasonable measure compared to larger acreage thresholds.
 - **Britney Mock 00:17:39** (Gaston): Supported the 5,000-acre limit as a balanced, smaller-scale approach to evaluate community impacts before potential expansion.
 - **Cody Light 00:18:25** (Gaston): Supported the 5,000-acre cap while raising concerns regarding subsoil drainage, county tile maintenance, and coordination with the county surveyor/drainage board.
 - **Robert Kester 00:18:27** (79 West Berell Drive): Spoke in favor of the 5,000-acre compromise, framing solar arrays as an alternative harvest of the sun

that supports agricultural financial diversity and tax base growth.

- **Linda Hansen 00:18:50** (1400 West North Street): Speaking on behalf of the League of Women Voters of Muncie-Delaware County, supported the 5,000-acre reduction and emphasized aligning with state commercial solar-ready community standards to access future state funding.
 - *In Opposition to 5,000-Acre Limit (or advocating for no cap):*
 - **John Taylor 00:23:04** (305 South Hutchinson Avenue): Expressed that a 5,000-acre cap may be an unnecessary restriction, noting that grid capacity (regulated by PJM) naturally limits the number of viable solar projects.
 - **Christina Wheeler 00:24:44** (Attorney, Bose McKinney & Evans, representing an energy client): Questioned the legal validity of an acreage cap under Indiana code, arguing that local regulations must be tied to public health and safety, and noted the interconnection between acreage caps and setbacks.
 - **Joe Russell 00:27:18** (3501 East 700 North, Eaton): Farmer and study committee member who argued that acreage caps are emotional rather than analytical, suggesting the market and PJM grid constraints will naturally dictate project numbers.
 - **Cheryl Dawson 00:29:38** (State Road 28 North): Expressed concern over fairness, potential disparate impacts among citizens, and submitted drainage documentation regarding neighboring solar installations.
 - **Sue Arrington 00:32:00** (3200 West Brook Drive): Noted that state commercial solar-ready community guidelines do not mandate an acreage cap, warning that caps could potentially disqualify the county from future state programs.
 - **Action & Vote Disposition:**
 - A motion was made by Mr. Henry and seconded to **approve** the 5,000-acre limit.
 - **Roll Call Vote:**
 - Mr. Dishman: Yes
 - Mr. Henry: Yes
 - Ms. Hensley: Yes
 - Mr. Landis: Yes
 - Mr. Watson-Bacher: Yes
 - Ms. Owen: Yes
 - Ms. Powell: Yes
 - Ms. Cy: Yes
 - Mr. Wisley: Yes
 - **Disposition: Passed Unanimously (9-0 Roll Call Vote).** Mr. Murphy confirmed that with this approval, the ordinance stands as passed by the County Commissioners upon certification.
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5. Open Public Comment / Citizen Forum

- *Note: Public comments were integrated directly into the substantive hearing for Item MPC 07-23A rather than held as a separate general forum.*
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Confirmation that the approved 5,000-acre limit ordinance will be certified back to the County Commissioners to stand as law.
 - **Adjournment:** Following a motion to adjourn by a board member, the meeting was officially **Adjourned** 00:35:35.
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